

22STCV28168 22STCV28168

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-07-27

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C07%2F27%2F2026

Source SHA-256: 483222e44a1a58c7220fcdffff1ddd4982449dc9e24db85dbdb7913dc5b9ccf3

Case Number: 22STCV28168 Hearing Date: July 27, 2026 Dept: F46

Dept. F-46

Hearing Date: July 27, 2026

Case Number: 22STCV28168

DEFENDANT CITY OF PASADENA'S MOTION FOR LEAVE TO FILE A FIRST AMENDED ANSWER

Motion filed on May 26, 2026.

MOVING PARTY: Defendant City of Pasadena (City)

RESPONDING PARTY: Joseph Wirija, individually and as the Successor in Interest of Yangyang Liu, deceased, Ansheng Liu, and Lele Chen (collectively, Plaintiffs)

NOTICE: OK.

RELIEF REQUESTED: City seeks leave to file a First Amended Answer adding affirmative defenses under Government Code sections 830.4 and 830.8.

RULING: Granted.

BACKGROUND

Plaintiffs filed the operative First Amended Complaint on June 14, 2023. On October 7, 2025, City filed a motion for summary judgment or, in the alternative, summary adjudication. On April 30, 2026, the Court denied City's motion and Plaintiffs' motion for summary adjudication. City filed this motion on May 26, 2026, supported by the declarations of Andrew K. Aaronian and Danielle St. Clair. Plaintiffs filed an opposition on July 14, 2026, supported by the declaration of Roxanne F. Swedelson and Exhibits A through D. City filed a reply and evidentiary objections on July 20, 2026.

EVIDENTIARY OBJECTIONS

The Court rules on Defendant's objections as follows:

Overruled: 1-10. The prior discovery proceedings, City's verified responses to Form Interrogatory No. 15.1, and the depositions of City employees bear directly on whether City delayed in seeking amendment. Swedelson authenticates the attached exhibits.

LEGAL STANDARD

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding . . ." (Code Civ. Proc., § 473, subd. (a)(1).) "Trial courts are vested with the discretion to allow amendments to pleadings 'in furtherance of justice.' That trial courts are to liberally permit such amendments, at any stage of the proceeding, has been established policy in this state since 1901." (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 488-489.)

"In particular, liberality should be displayed in allowing amendments to answers, for a defendant denied leave to amend is permanently deprived of a defense." (Hulsey v. Koehler (1990) 218 Cal.App.3d 1150, 1159 (Hulsey).) Unwarranted delay in presenting an amendment may itself support denial. (Roemer v. Retail Credit Co. (1975) 44 Cal.App.3d 926, 939-940 (Roemer).) Where the delay has not misled or prejudiced the opposing party, however, the liberal rule prevails. (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564-565 (Higgins).) Prejudice may arise where the amendment would delay trial, cause the loss of critical evidence, add preparation costs, or increase the burden of discovery. (Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 486-488 (Magpali).)

DISCUSSION

Procedural Compliance

California Rules of Court, rule 3.1324(a) requires the moving party to attach the proposed amended pleading and identify the allegations to be added or deleted by page, paragraph, and line number. The supporting declaration must state the effect of the amendment, why it is necessary and proper, when the facts giving rise to it were discovered, and why amendment was not requested earlier. (Cal. Rules of Court, rule 3.1324(b).)

Here, City attaches the proposed First Amended Answer and identifies the proposed additions as the seventy-first affirmative defense at page 9, lines 10 through 13 and the seventy-second affirmative defense at page 9, lines 14 through 16. City proposes no substantive deletions. (Aaronian Decl., ¶ 3, Ex. 1.) Counsel states that the amendment would add affirmative defenses under Government Code sections 830.4 and 830.8 and that the amendment is necessary because Plaintiffs allege roadway signage deficiencies. Counsel further states that, on April 2, 2026, counsel discovered that the Answer did not expressly include either defense and that amendment was not sought earlier because counsel believed the Answer already included the defenses expressly or implicitly. (Aaronian Decl., ¶¶ 4-7; St. Clair Decl., ¶¶ 3-4.)

Plaintiffs correctly note that counsel identifies when counsel discovered the pleading omission, not when City discovered the facts underlying the defenses. The Court nevertheless finds that the motion substantially complies with rule 3.1324. City identifies the proposed amendments, their effect and necessity, and the reason leave was not sought earlier. The Court addresses the timing of the underlying facts and City's delay in seeking amendment below.

Delay and Prejudice

Plaintiffs argue that City unreasonably delayed seeking amendment because the signage allegations have been part of the case since June 2023, City relied on Government Code sections 830.4 and 830.8 in its October 2025 summary judgment motion, and City did not seek leave until May 26, 2026. Plaintiffs also emphasize that City served a fourth further response to Form Interrogatory No. 15.1 on November 4, 2025 without identifying either statute as an affirmative defense. (Swedelson Decl., ¶¶ 19-21, Ex. D.)

City could have exercised greater diligence in identifying and resolving the pleading issue, particularly when preparing its October 2025 summary judgment motion and November 2025 further interrogatory response. That delay and lack of diligence weigh against leave, and unwarranted delay may by itself support denial. (Roemer, supra, 44 Cal.App.3d at pp. 939-940.) In deciding whether they warrant denial, the Court considers City's explanation and litigation conduct, as well as whether the delay misled or prejudiced Plaintiffs. (Ibid.; Higgins, supra, 123 Cal.App.3d at pp. 564-565 [liberal rule prevailed where amendment sought at trial caused no prejudice or surprise and would have delayed trial only briefly]; Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 [even assuming unreasonable delay, denial was an abuse of discretion where the opposing party was not misled or prejudiced; introduction of new legal theories is irrelevant where the amendment relates to the same general set of facts].)

City explains that it believed the existing Answer already encompassed sections 830.4 and 830.8, expressly or implicitly, which is why City asserted the defenses on summary judgment without first seeking leave to amend. City further argues that it awaited the summary judgment ruling because the Court might construe the existing defenses to encompass both statutes. After the Court ruled on April 30, 2026 that the defenses had not been pleaded, City requested a stipulation on May 8, 2026 and filed this motion on May 26, 2026. (Aaronian Decl., ¶¶ 6-8, Ex. 2; St. Clair Decl., ¶¶ 3-4.)

Form Interrogatory No. 15.1 required City to identify each affirmative defense and the facts, witnesses, and documents supporting it. City served multiple verified responses without identifying either statute as an affirmative defense, including its November 4, 2025 fourth further response served after City had invoked both statutes on summary judgment. This occurred after the Court ordered a further response and imposed \$2,685 in sanctions. (Swedelson Decl., ¶¶ 12-21, Exs. C-D.) The repeated omissions weigh against leave.

Plaintiffs characterize those omissions as concealment and gamesmanship, but the record does not support that inference. City expressly invoked sections 830.4 and 830.8 in its October 7, 2025 summary judgment motion. Plaintiffs therefore knew, more than nine months before this hearing and more than one year before trial, that City intended to rely on both defenses.

Roemer involved materially different conduct. There, the defendant sought amendment at the close of its case in a second trial after twice stipulating that the publications were false and trying both cases on that premise. The proposed amendment would have asserted partial truth in conflict with those stipulations, even though the supporting facts had been known since the first trial. (Roemer, supra, 44 Cal.App.3d at pp. 938-941.) Green likewise involved a deliberate strategic shift. The defendant's verified answer stated that it had acted diligently, but after the plaintiffs were foreclosed from pursuing a negligence claim, the defendant sought to plead its own negligence as a defense. The amendment contradicted the verified answer, exploited the procedural posture following the first appeal, and would have required additional discovery and a substantial revision of the plaintiffs' trial strategy. (Green v. Rancho Santa Margarita Mortgage Co. (1994) 28 Cal.App.4th 686, 691-694.)

Here, City did not reverse a factual admission or seek amendment only after Plaintiffs lost the ability to pursue a corresponding claim. Since October 2025, City has consistently maintained that sections 830.4 and 830.8 apply.

As to prejudice, Plaintiffs have shown that the amendment may require some supplemental discovery. Plaintiffs engaged in extended meet-and-confer efforts concerning Form Interrogatory No. 15.1, obtained an order compelling a further response and monetary sanctions, and deposed five current and former City employees, including Department of Transportation employees, before City sought leave to amend. (Swedelson Decl., ¶¶ 12-22, Exs. C-D.) Any supplemental discovery made necessary by the amendment results from City's delay.

The Court finds, however, that the proposed defenses do not materially expand the factual issues in this action. Sections 830.4 and 830.8 concern Plaintiffs' allegations that City failed to provide traffic-control signals, speed restriction signs, roadway markings, and other traffic or warning devices. The First Amended Complaint already places those matters at issue through allegations concerning the absence of a driver feedback sign, traffic signals, additional speed-limit signs, adequate warnings, stop-sign visibility, tree obstruction, and roadway markings. (Swedelson Decl., Ex. A, ¶¶ 58-59.) City's fourth further response also identified its factual positions, witnesses, and documents concerning the traffic controls at the intersection, the alleged need for additional controls, stop-sign visibility, and the adequacy of existing warnings. (Swedelson Decl., ¶¶ 19-21, Ex. D at 24-29.)

The discovery cutoff is September 26, 2026 and trial is set for October 26, 2026. The motion is being heard two months before the discovery cutoff and approximately three months before trial. The Court finds focused discovery concerning the two proposed defenses can be completed within the existing schedule.

The prejudice determinations in *Magpali*, *Hulsey*, and *Permalab* rested on circumstances materially different from those presented here. In *Magpali*, the amendment would have transformed an individual dispute into a broader inquiry into Farmers' practices throughout Southern California, requiring new witnesses, documents, maps, and a continuance. (*Magpali*, supra, 48 Cal.App.4th at pp. 486-488.) In *Hulsey*, the defendant first asserted a potentially dispositive defense at trial, after the plaintiffs had prepared their case without notice of it. (*Hulsey*, supra, 218 Cal.App.3d at pp. 1159-1160.) In *Permalab*, the delay caused irreversible prejudice because the contractor had gone out of business and the plaintiff had lost potential attachment and bankruptcy remedies. (*Permalab-Metalab Equipment Corp. v. Maryland Casualty Co.* (1972) 25 Cal.App.3d 465, 470-472.)

Here, the amendment concerns the same intersection, traffic controls, witnesses, and documents already at issue, and City disclosed its intended reliance on both statutes in October 2025. The record shows no comparable need for broad new discovery or loss of evidence or remedies.

The Court finds that City's delay and repeated omission of the defenses from its discovery responses weigh against leave, particularly in light of Plaintiffs' prior efforts to obtain discovery concerning City's affirmative defenses. The Court nevertheless finds that Plaintiffs were not misled about City's intended reliance on sections 830.4 and 830.8. Any necessary supplemental discovery should be limited and can be completed before the discovery cutoff. The record does not show that Plaintiffs must repeat completed depositions, that evidence has been lost, or that trial must be continued. Under these circumstances, the Court finds that City's delay and lack of diligence do not overcome the liberal policy favoring amendment. (*Higgins*, supra, 123 Cal.App.3d at pp. 564-565; *Hulsey*, supra, 218 Cal.App.3d at p. 1159.)

CONCLUSION

City's motion for leave to file a First Amended Answer is granted. City shall separately file and serve the proposed First Amended Answer attached as Exhibit 1 to the Aaronian declaration within five court days of this order.